

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 57

AFFAIRE RELATIVE A L'ADMINISTRATION
DU PRINCE VON PLESS

(PROROGATION)

ORDONNANCE DU 4 JUILLET 1933

1933

ORDER OF JULY 4th, 1933

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 57

CASE CONCERNING THE ADMINISTRATION
OF THE PRINCE VON PLESS

(PROROGATION)

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF

LEYDEN
A. W. SIJTHOFF'S
PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON JULY 4th, 1933.

1933.
July 4th.
General List:
Nos. 49 and 55.

July 4th, 1933.

CASE CONCERNING THE ADMINISTRATION
OF THE PRINCE VON PLESS.

(PROROGATION.)

The Acting President of the Permanent Court of International Justice,

Having regard to Article 48 of the Statute,
Having regard to Article 33 of the Rules,

Makes the following Order:

Having regard to the Application of May 18th, 1932, whereby the Government of the German Reich brought before the Permanent Court of International Justice a suit against the Government of the Republic of Poland, founded on an alleged violation by the Polish Government of certain obligations incumbent upon that Government under the Geneva Convention of May 15th, 1922, concerning Upper Silesia, in regard to the Administration of the Prince von Pless, a Polish national belonging to the German minority in Polish Upper Silesia;

Having regard to the document filed with the Registry on October 8th, 1932, whereby the Government of the Polish Republic, under Article 38 of the Rules, raised a preliminary objection to the German Government's Application, submitting that the Court should "declare the German Government's Application inadmissible";

Having regard to the Order of February 4th, 1933, whereby the Court, *inter alia*,

fixed August 15th, 1933, as the date of expiration of the time for the presentation of the Polish Government's Counter-Case on the merits (operative clauses, No. 3);

decided that, should the Agent for the Polish Government ask—in conformity with Article 33 of the Rules—for an extension of this time-limit, amongst others, on the ground that the Supreme Polish Administrative Tribunal had not, by July 1st, 1933, pronounced judgment upon the appeals of the Prince von Pless filed on April 19th, 20th and 26th, and May 9th and 10th, 1932, it would give effect to such request and fix new time-limits (operative clauses, No. 4);

decided that, should the Agent for the German Government, after July 1st, 1933, and having regard to any request for an extension made by the Polish Government's Agent, submit a request for the fixing of time-limits based on the contention that there had been an unwarrantable delay in the delivery of the said decisions by the said Supreme Tribunal, and that this was calculated to prejudice the proper operation of the provisions of Part III, Head I, of the Geneva Convention, it would, notwithstanding the decision recorded in the preceding paragraph, consider such request after duly hearing both Parties (operative clauses, No. 5);

Whereas, by a letter dated at Warsaw on June 29th, 1933, and filed in the Registry of the Court on July 3rd, 1933, the Polish Government's Agent has asked the Court, pursuant to the above-mentioned Order of February 4th, 1933, for an extension of the time-limit for the presentation of the Polish Government's Counter-Case until December 31st, 1933;

Whereas, in support of this request, the Polish Agent submits the following reasons:

By a decision of June 19th, the Supreme Administrative Tribunal has fixed October 16th for the hearing of the five suits of the Prince von Pless; the latter has, since February 4th, 1933, filed with that Tribunal a sixth claim concerning a question relating to the Prince von Pless's taxation for 1930, which, *inter alia*, forms the subject of the Application filed by the German Government with the Court, and this claim could also be heard on October 16th; the Tribunal delivers its judgments in the course of the month following the oral proceedings; in view of the volume of work of the Tribunal, "the date fixed by it does not constitute an unwarrantable delay in rendering its decisions"; it will certainly be of advantage as concerns the proceedings before the Court that the Tribunal should also pass upon the claim respecting the tax for the year 1930; the extension sought cannot prejudice the position of the Prince von Pless, in view of the declaration of the Polish Government, repeated on May 8th, to the effect that it will abstain from any measures of constraint against the Prince von Pless in respect of his income-tax for the years 1925 to 1930 until the dispute pending before the Court has been settled;

Whereas, in any event, the Court has decided in advance by its Order of February 4th, 1933, to give effect to the request now submitted by the Agent for the Polish Government and to fix new time-limits;

THE ACTING PRESIDENT OF THE COURT

fixes as follows, subject to No. 5 of the operative clauses of the Order of Court of February 4th, 1933¹, the time-limits for the filing of the Counter-Case, Reply and Rejoinder on the merits in the suit concerning the Administration of the Prince von Pless:

for the filing of the Counter-Case by the Polish Government, Friday, December 29th, 1933;

for the filing of the Reply by the German Government, Wednesday, January 31st, 1934;

for the filing of the Rejoinder by the Polish Government, Wednesday, February 28th, 1934.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this fourth day of July, one thousand nine hundred and thirty-three, in three copies, one of which shall be placed in the archives

¹ [Note by the Registrar of the Court.] At the public hearing held on July 11th, 1933, the President of the Court made the following statement with regard to the case concerning the Prince von Pless Administration:

"On February 4th last, the Court issued an Order whereby it fixed August 15th, 1933, as the last date for the presentation of a Counter-Case by the Polish Government subject to the following two reservations:

Should the Polish Government, on the ground that the Supreme Polish Administrative Tribunal had not, by July 1st, 1933, pronounced judgment upon the appeals brought before it by the Prince von Pless, ask for an extension of the time-limits, the Court would give effect to such request (operative clauses, No. 4); should the German Government, after that date, and having regard to any request for an extension by the Polish Government, submit a request for the fixing of time-limits based on the contention that there had been an unwarrantable delay in the delivery of its decisions by the said Supreme Tribunal, the Court would consider such request after duly hearing both Parties (operative clauses, No. 5).

By letter of June 29th last, the Agent of the Polish Government, with reference to the Order of February 4th, asked the Court for an extension of the time-limit in question until December 31st next. On July 4th an Order was made acceding to this request subject to the rights of the Agent of the German Government, under operative clause No. 5 of the Order of February 4th. The Polish request and the Order of Court having been communicated to him, the Agent of the German Government has now stated that the German Government does not intend to make the request provided for in operative clause No. 5. Accordingly, the time-limits fixed in the Order of July 4th are now final, i.e., the case will be ready for hearing on Wednesday, February 28th, 1934."

of the Court and the others transmitted to the Government of the German Reich and to the Government of the Polish Republic respectively.

(Signed) J. G. GUERRERO,
Acting President of the Court.

(Signed) Å. HAMMARSKJÖLD,
Registrar of the Court.